

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 06/03/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	Boctor – Trust; 30-2022-01297656	
2	Donaldson – Probate; 30-2023-01323260	Motions to Compel (2) Petitioner Darla Merritt’s unopposed Motion for an Order Compelling Eric Donaldson’s Responses to Inspection Demand, Set One (ROA 195) is GRANTED. Eric Donaldson is ORDERED to provide written responses, without objection, to Inspection Demands 1-15 and to produce all documents responsive to each of the requests within 30 days of this order. Petitioner’s request for sanctions in connection with the motion is GRANTED in the amount of \$1,547.50 (2.5 hours at \$595 per hour plus the \$60 motion fee). Petitioner Darla Merritt’s unopposed Motion for an Order Compelling Eric Donaldson’s Further Responses to Form Interrogatories, Set One (ROA 191) is GRANTED. Eric Donaldson is ORDERED to provide further responses, without objection, to Form Interrogatory 17.1 (for responses to Requests for Admission Nos. 2, 3, 4, 5, 6, 7, 8, 9, 10, 14, & Exhibit 1) and Form Interrogatory 50.1 within 30 days of this order. Petitioner’s request for sanctions in connection with the motion is GRANTED in the amount of \$2,142.50 (3.5 hours at \$595 per hour plus the \$60 motion fee). Moving party is directed to give notice.
3	Stuck – Trust; 30-2022-01271247	
4	Zablan – Trust; 30-2019-01045409	
5	Escarsega – Elder Abuse; 30-2026-01554714	Motion to Compel

		Petitioner Bruce Martinez’s Motion to Compel Discovery Order to Disclose Location (ROA 4) is DENIED. The motion fails to provide any statutory or other legal authority authorizing the motion. The only authority cited within the motion is a reference to “Brady v. Maryland.” The court presumes this reference is to <i>Brady v. Maryland</i> (1963) 373 U.S. 83, which holds the prosecution in a criminal trial must disclose exculpatory evidence whether or not a defendant requests it. (<i>Id.</i>, at pp. 1196-1197.) The <i>Brady</i> doctrine has no application in this proceeding. Further, the court cannot determine from the motion the nature of the discovery Petitioner is seeking. The motion is DENIED. The court directs the clerk to give notice.
6	Nunes – Trust; 30-2024-01396741	Motion for Order Releasing Records Petitioner Peggy Nunes’ unopposed Motion for Order Authorizing Release of Adult Protective Protective [sic] Services and Long-Term Care Ombudsman Records (ROA 92) is DENIED. This matter arises out of the Mervin & Juanita Nunes Family Trust (Trust). In the original trust instrument, Petitioner Peggy Nunes (Petitioner) and her brother respondent Mervyn M. Nunes (Respondent) were named as beneficiaries. In the second and third amendments to the Trust, petitioner was omitted as a beneficiary. Petitioner asserts those amendments were the result of undue influence by Respondent. In April 2024, petitioner initiated this proceeding with the petition seeking an order determining the validity of the earlier Trust documents and alleging financial elder abuse. By the motion before the court this day, Petitioner seeks an order authorizing the release of records relating to her mother, trustor Juanita Nunes, from Orange County and/or Los Angeles County Adult Protective Services and the Orange County Long-Term Care Ombudsman Program for the period October 1, 2013 through December 2023. She seeks all records, including “complaints, intake reports, investigation reports, case notes, findings, communications, referrals and related documentation.” (Motion at 4:11-12.) Petitioner argues the records are directly relevant to the issue of whether her mother might have been vulnerable to undue influence during the time the trust was amended. Two days before the hearing on the motion, Petitioner submitted a supplemental declaration in support of the motion. “The general rule of motion practice . . . Is that new